

PACKET #4

DISSOLUTION OF MARRIAGE WITH DEPENDENT OR MINOR CHILDREN

The Dissolution of Marriage with Dependent or Minor Child(ren) is possible for a divorce when:

1. At least one of the parties has been a resident of the State of Florida for six (6) months immediately before the filing of the papers.
2. You feel that the marriage is irretrievably broken and want to end the marriage.
3. There are minor (under 18 years of age) or dependent children together.
4. The wife is pregnant.

Please be advised that you will be required to pay a \$10.50 fee in addition to the original filing fee to obtain your Final Judgment of Dissolution of Marriage and record it with the Bureau of Vital Statistics.

NOTE: The Family Law Financial Affidavit included in this packet is for those individuals whose income is under \$50,000 per year. If your income exceeds that figure, you can use this packet; however, you must use the Supreme Court Family Law Financial Affidavit-Long Form. The long form is not included in this packet.

This packet includes the document ***Instructions and Assessments for Your Parenting Plan***. Complete the assessment to determine which parenting plan may be right for your family. Purchase the appropriate Parenting Plan from the Clerk of Court, or download the plan from the 12th Judicial Circuit's website at www.jud12.flcourts.org. Before you fill in any part of the Parenting Plan, you should make a copy of the blank form. Save this copy for when you are ready to fill out a final version to file with the Court. If the court refers your case to mediation, be sure to review and complete a draft of the Parenting Plan prior to attending mediation. Once your proposed Parenting Plan is complete, provide the other party with a copy of the Parenting Plan.

This packet has been designed to provide forms and instructions approved by the Florida Supreme Court to individuals who have chosen to represent themselves. This packet contains most, but possibly not all of the forms and instructions you may need to represent yourself. You may find all Supreme Court approved forms on the Internet at www.flcourts.gov, or at your local law library. If you do not understand the forms or your legal rights or obligations, you should consult with an attorney.

It is **your responsibility to read and understand this entire packet before proceeding further**. After you have read and understand the instructions, and after you have filed the appropriate forms, contact the Family Division Self-Help Office by filing a **FORM A** to obtain a court date. Use of these forms does not constitute representation by courthouse personnel. Courthouse personnel **cannot** give you legal advice nor can they help you complete these forms. The forms contained in this packet and the directions provided are simplified to meet the general needs of the majority of pro se litigants. This packet may not have the forms necessary for every case, and this information booklet may not address every party's particular situation. The directions given are only basic guidance for completing the forms. They are not explanations of all rights and duties associated with family law practice.

NO REFUNDS